

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

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MERRICK WILLIAMS,

Plaintiff,

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
FABIAN R. MODESTO (Shield # 7125), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-12 (names
and numbers unknown at this time), and other unidentified
members of the New York City Police Department,

Defendants.
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SUMMONS

Basis of Venue
Place of Incident

Plaintiff designates
Kings County
as the place of trial

To the above-named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
January 23, 2023

Respectfully submitted,

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:

CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE FABIAN R. MODESTO (Shield # 7125), 67th Precinct, Brooklyn, NY

SUPREME COURT OF THE STATE OF NEW YORK
KINGS COUNTY

-----X
MERRICK WILLIAMS,

Plaintiff,

**VERIFIED
COMPLAINT**

-against-

THE CITY OF NEW YORK, NYPD DETECTIVE
FABIAN R. MODESTO (Shield # 7125), and NYPD
OFFICERS JOHN and JANE DOE #'s 1-12 (names
and numbers unknown at this time), and other unidentified
members of the New York City Police Department,

Defendants.

-----X
Plaintiff **Merrick Williams**, by his attorney, SYDNEY O'HAGAN, ESQ., as and for the Complaint herein,
alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of Plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Section 1983 and the rights secured by the Fourth, Fifth, Sixth, Eighth, and Fourteenth Amendments to the United States Constitution the laws of the State of New York. Plaintiff was unlawfully stopped, searched, and arrested by the defendants. Plaintiff was deprived of his federal constitutional rights, state constitutional rights, and common law rights when the individually named police defendants subjected him to, among other things, assault, false arrest, unlawful search and seizure, excessive force, negligence, gross negligence, intentional and negligent infliction of emotional distress, malicious prosecution, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff

seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees and such other relief as the Court deems just and proper.

PARTIES

2. Plaintiff is a resident of Kings County, State of New York.
3. Defendant City of New York is a municipal corporation organized under the laws of the State of New York, which violated plaintiff's rights as described herein.
4. NYPD OFFICER FABIAN R. MODESTO (Shield # 7125) on or about November 11, 2021, was employed with the 67th Precinct of the New York City Police Department ("NYPD"), and was at all times relevant herein officers, employees, and agents of the NYPD.
5. NYPD OFFICER FABIAN R. MODESTO (Shield # 7125) is being sued in his individual capacity and official capacity.
6. Police Officer John Doe Number 1 is and was at all times relevant herein an officer, employee, and agent of the New York City Police Department.
7. Police Officer John Doe #1 is being sued in his individual capacity and official capacity.
8. New York Police Officers John and Jane Doe #'s 2-12 are and were at all times relevant herein an officer, employee, and agent of the New York City Police Department.
9. Police Officers John and Jane Doe #'s 2-12 are being sued in his/her individual capacity and official capacity.
10. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and

authority vested in them as officers, agents, and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

11. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as agents in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.
12. Plaintiff in furtherance of his State causes of action filed a timely Notice of Claim upon the City of New York in compliance with Municipal Law Section 50.
13. More than thirty (30) days have elapsed since service of said Notice of Claim was filed and the City of New York has failed to pay or adjust the claim.
14. The City of New York held a 50(h) hearing examination of Plaintiff on May 6, 2022.

STATEMENT OF FACTS

15. On November 11, 2021, at approximately 12:30 a.m., at approximately 52nd Street between Church Avenue and Snyder Avenue, Brooklyn, New York, claimant was unlawfully stopped, searched, and arrested for Criminal Possession of Weapon, Obstruction of Government Administration, Resisting Arrest, and Possession of a Forged Instrument. At the time of his arrest, numerous officers from the 67th Precinct, including upon information and belief, NYPD Detective Fabian Modesto (Shield # 7125) and P.O. John and Jane Does #1-12, and other as yet unknown police officers, at times acting in concert and at times acting independently, committed the following illegal acts against Plaintiff.

16. On November 11, 2021, at approximately 12:30 a.m., Plaintiff was standing outside his house in his driveway smoking a cigarette when a group of unidentified NYPD officers suddenly stopped and exited their vehicle and ran toward him. At that moment, Plaintiff was under the impression he was under attack by a group of unknown individuals. He did not know the individuals were NYPD officers when they first approached him.
17. When defendant NYPD Officers approached Plaintiff, they did not identify themselves as officers. In the alternative, NYPD officers identified themselves as officers, but Plaintiff did not hear them identify themselves.
18. Plaintiff was under the impression he was about to be robbed by the individuals rushing toward him. In response, he ran into this backyard in an attempt to avoid becoming the victim of a crime. Defendant NYPD officers followed Plaintiff into his backyard without permission, consent or authority. Before reaching his back door, defendant officers tripped Plaintiff, who fell on the cement and metal stairs leading to his back door. Plaintiffs' whole body hit the metal stairs and his knee hit the ground. As a result, he suffered injuries to his hands, knees, and head. Defendant officers hit Plaintiff on his knees with a baton or flashlight and also hit his head against the metal stairs several times.
19. Plaintiff suffered injuries to his hands, knees, and wrists as a result of defendant officers conduct. These injuries include, but are not limited to, lacerations to his hands, a slash to his left temple area, bruising to his knees, and pain to his chest.
20. Defendant officers repeatedly told Plaintiff they were going to shoot him.
21. Plaintiff requested medical treatment at the scene of his arrest, but defendant NYPD officers ignored him and transported him to the 67th precinct. Plaintiff repeatedly requested medical treatment at the precinct, but defendant officers ignored or denied his requests. Finally, after six

hours in custody, he was transported to Kings County Hospital, where he received extensive medical treatment for his significant injuries.

22. Plaintiff was eventually transported to Central Booking where the Kings County District Attorney's office deferred his prosecution. He has never been rearrested or charged with any crime relating to his arrest.
23. Although Plaintiff was released by the District Attorney's office, he was held in by parole as a result of the arrest. Plaintiff spent approximately fifteen days in custody as the result of the arrest and parole hold. He was physically injured during his time in custody at Ryker's Island.
24. Parole conducted a preliminary hearing on November 23, 2021, and concluded there was no probable cause for Plaintiff's parole hold. As such, he was released from parole custody on or about November 25, 2021.

FIRST CAUSE OF ACTION

ASSAULT

25. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 24 with the same force and effect as if more fully set forth herein. [L]
[SEP]
26. Defendants their agents, servants and employees, acting within the scope of their employment, intentionally, willfully and maliciously assaulted plaintiff in that they had the real or apparent ability to cause imminent harmful and/or offensive bodily contact and intentionally did a violent and/or menacing act which threatened such contact to Plaintiff, and that such acts caused apprehension of such contact in Plaintiff. NYPD Officer Fabian R. Modesto and numerous P.O. John and Jane Does assaulted Plaintiff prior to his false and illegal arrest when said defendants tripped him, hit him with a baton, and threatened to shoot him.

27. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct. ^[1]_{SEP}
28. The City, as the employer of defendants is responsible for their wrongdoing under the doctrine of respondeat superior. ^[1]_{SEP}

SECOND CAUSE OF ACTION

FALSE ARREST AND FALSE IMPRISONMENT

29. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 28 as if fully set forth herein.
30. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine Plaintiff and, in fact, confined Plaintiff, and Plaintiff was conscious of the confinement. In addition, Plaintiff did not consent to the confinement and the confinement was not otherwise privileged.
31. As a result of defendant officers conduct, Plaintiff's liberties were restricted for approximately 15 days. He was humiliated, assaulted, searched, and subjected to handcuffing and other physical restraints without probable cause.
32. The individually named defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.
33. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

THIRD CAUSE OF ACTION

MALICIOUS PROSECUTION

34. The plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 33 with the same force and effect as if more fully set forth at length herein.
35. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York.
36. Defendants commenced and continued a criminal proceeding against Plaintiff with malice and without probable cause, caused him a serious deprivation of liberty as a result, and Plaintiff obtained a favorable termination on the fabricated charges.
37. Defendants commenced and continued a criminal proceeding against Plaintiff.
38. There was actual malice and an absence of probable cause for the criminal proceeding against Plaintiff and for each of the charges for which he was prosecuted because Plaintiff was charged with Criminal Possession of a Weapon, Obstruction of Governmental Administration and related charges when, in reality, he had not committed any offense. These charges were fabricated to protect defendant officers who had engaged in an unlawful and brutal assault of Plaintiff after attempting to unlawfully obtain private information from him without procuring a search warrant.
39. The prosecution and criminal proceedings were deferred on November 11, 2021.
40. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate his state constitutional and tort rights.
41. The individually named Defendant Police Officers were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

FOURTH CAUSE OF ACTION

NEGLIGENT HIRING, RETENTION, TRAINING AND SUPERVISION

42. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.
43. The City of New York and its employees, servants and/or agents acting within the scope of their employment did negligently hire, retain, train and supervise the individually named defendants, individuals who were unfit for the performance of NYPD duties.

FIFTH CAUSE OF ACTION

FAILURE TO INTERVENE

44. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 43 with the same force and effect as if more fully set forth at length herein.
45. Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other members of the NYPD, subjecting Plaintiff to, *inter alia*, assault, unlawful search and seizure, and illegal detention.
46. Defendants failed to intervene to prevent the unlawful conduct described herein despite having had a reasonable opportunity to do so, and full knowledge of the unlawful conduct.
47. As a result of the foregoing, Plaintiff was subjected to assault, illegal search and undue force upon his person over the course of his false arrest.
48. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York, the New York City Police Department, which are therefore responsible for their conduct.
49. The City, as the employer of defendants, is responsible for their wrongdoing under the doctrine of respondeat superior.

SIXTH CAUSE OF ACTION

INTENTIONAL AND NEGLIGENT INFLICTION OF EMOTIONAL DISTRESS

50. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in paragraphs marked 1 through 49 with the same force and effect as if more fully set forth at length herein.
51. By the actions described herein, the individually named police officer defendants, each acting individually and in concert with one another, engaged in extreme and outrageous conduct, conduct utterly intolerable in a civilized community, which negligently caused severe emotional distress to Plaintiff. The acts and conduct of the defendants were the direct and proximate cause of injury and damage to Plaintiff and violated Plaintiff's statutory and common law rights as guaranteed by the laws and Constitution of the State of New York.
52. As a result of the foregoing, Plaintiff was deprived of liberty and sustained great emotional injuries.
53. The City, as the employer of the defendants, is responsible for their wrongdoing under the doctrine of respondeat behavior.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF

DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
55. All of the aforementioned acts of defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12, their agents, servants, and employees, were carried out under the color of state law.
56. All of the aforementioned acts deprived Plaintiff of his rights, privileges, and immunities guaranteed to citizens of the United States by the Fourth, Fifth, Sixth, Eighth, and Fourteenth

Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

57. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.
58. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department, all under the supervision of ranking officers of said department.
59. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF

EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

60. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
61. Plaintiff's constitutional rights were violated when NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DO #'s 1-12 subjected him to excessive force. Plaintiff was punched and slammed into the ground and metal staircase. Plaintiff promptly requested medical attention, but it was denied for several hours.
62. The use of force was objectively unreasonable. Plaintiff did not pose a threat to the safety of any officer, as he had not tried to evade the police and had not committed any crime. He never attempted to assault or threatened to harm any officer. Rather, he was simply standing in his own

driveway when several officers who failed to identify themselves as such ran up on him and assaulted him.

63. As a result of this conduct, Plaintiff's rights under the fourth, eighth, and fourteenth Amendments of the United States Constitution were violated.

THIRD CLAIM FOR RELIEF

FALSE ARREST UNDER 42 U.S.C. § 1983

64. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
65. As a result of the aforesaid conduct by defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff was subjected to an illegal, improper, and false arrest by the defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12, taken into custody and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent. Prior to Plaintiff's arrest he was not engaging in any criminal activity.
66. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and was humiliated, searched, and subjected to handcuffing and other physical restraints, without probable cause.

FOURTH CLAIM FOR RELIEF

UNLAWFUL SEARCH UNDER 42 U.S.C. § 1983

67. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
68. Plaintiff was searched by defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 without an individualized reasonable suspicion that

Plaintiff had committed any crime or was in possession of any illicit contraband, illegal weapons, or any other illegal substances.

69. As a result of the aforesaid conduct by defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12, Plaintiff's unlawfully approached Plaintiff and improperly searched him without consent, a valid warrant, probable cause, or a specific articulable factual basis supporting a reasonable suspicion and/or probable cause to believe Plaintiff had committed any crime or was in possession of contraband or any illegal substance as set forth in the Fourth, Fifth, and Fourteenth Amendments to the Constitution of the United States.
70. As a result of the foregoing, Plaintiff was deprived of his Constitutional rights and has suffered mental anguish, together with shock, fright, apprehension, embarrassment and humiliation.

FIFTH CLAIM FOR RELIEF

DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL UNDER 42 U.S.C. § 1983

71. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
72. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 created false evidence against the plaintiff, alleging that he committed the crime of grand larceny, among other related crimes.
73. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 forwarded false evidence and false information to prosecutors in the New York County District Attorney's Office – namely, the defendants falsely informed prosecutors *inter alia*, that they alleged Plaintiff had engaged possessed a weapon and resisted arrest, when no objective evidence existed that he committed any crime.

74. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 misled the prosecutors by creating false evidence against the Plaintiff and thereafter providing the aforementioned false statements throughout the criminal proceedings.
75. In creating false evidence against the plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 violated Plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.
76. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

SIXTH CLAIM FOR RELIEF
FAILURE TO INTERCEDE UNDER 42 U.S.C. § 1983

77. Plaintiff repeats, reiterates, and realleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
78. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 had an affirmative duty to intercede when Plaintiff's constitutional rights were being violated in defendants' presence by subjecting him to excessive force.
79. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD OFFICERS JOHN and JANE DOE #1-12 further violated Plaintiff's constitutional rights when they failed to intercede and prevent the violation or further violation of Plaintiff's constitutional rights and the injuries or further injuries caused as a result of said failure.
80. As a result of the defendants' failure to intercede when Plaintiff's constitutional rights were being violated in defendants' presence, Plaintiff sustained, *inter alia*, emotional injuries, Plaintiff's

liberty was restricted for an extended period of time, he was assaulted by officers, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

SEVENTH CLAIM FOR RELIEF

MALICIOUS PROSECUTION UNDER 42 U.S.C. § 1983

81. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
82. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence before the New York County District Attorney, including false allegations that Plaintiff possessed a weapon, resisted arrest, or acted in a disorderly way, among other charges.
83. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 did not make a complete and full statement of facts to the District Attorney. In particular, they failed to inform the District Attorney of objective evidence of Plaintiff's innocence.
84. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 withheld exculpatory evidence from the District Attorney, including that video surveillance existed showing Plaintiff Williams was not involved in the theft of anyone's property.
85. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 were directly and actively involved in the initiation of criminal proceedings against plaintiff.
86. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 lacked probable cause to initiate criminal proceedings against plaintiff.

87. Defendants NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 acted with malice in initiating criminal proceedings against plaintiff.
88. Defendants 5. NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 misrepresented and falsified evidence throughout all phases of the criminal proceedings.
89. Specifically, defendant NYPD OFFICERS FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12 made the aforementioned false and misleading allegations regarding the circumstances surrounding Plaintiff's arrest.
90. Notwithstanding the perjurious and fraudulent conduct of defendant NYPD DETECTIVE FABIAN R. MODESTO, and NYPD Officers John and Jane Doe #'s 1-12, the criminal proceedings were terminated in Plaintiff's favor on November 11, 2021.
91. As a result of the foregoing, Plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, he was physically injured, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

EIGHTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

92. Plaintiff repeats, reiterates, and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.
93. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.
94. The aforementioned customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics; and,
 - b. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
 - c. fabricating evidence in connection with their arrest/prosecution in order to cover up police misconduct; and,
 - d. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and
 - e. failing to take reasonable steps to control and/or discipline police officers who lie, fabricate evidence, and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.
95. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the Plaintiff.
96. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the Plaintiff as alleged herein.
97. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff as alleged herein.
98. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the Plaintiff's constitutional rights.

99. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the Plaintiff's constitutional rights.

100. The acts complained of deprived the Plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon them; and
- D. To receive equal protection under the law.

WHEREFORE, MERRICK WILLIAMS, Plaintiff, demands a judgment against the defendants on each cause of action in amounts to be determined upon the trial of this actions which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorney's fees inclusive of costs and disbursements of this action, interest and such other relief as appropriate under the law.

Dated: New York, New York
January 23, 2023

Respectfully submitted:

By: /s/ Sydney O'Hagan
Sydney O'Hagan, Esq.
40 Exchange Place
Suite 1000
New York, New York 10005
(774) 218-3461
sydney.ohagan@gmail.com

TO:
CITY OF NEW YORK: CORPORATION COUNSEL, 100 Church Street, New York, NY 10007
NYPD DETECTIVE FABIAN R. MODESTO (Shield # 7125), 67th Precinct, Brooklyn, NY

ATTORNEY'S VERIFICATION

I, **SYDNEY O'HAGAN**, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am attorney at the law firm of **SYDNEY O'HAGAN, ESQ.**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters wherein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, and other pertinent information contained in my files. The reason this verification is made by me and not Plaintiff's is that Plaintiff is out of the county.

DATED: New York, New York
January 23, 2023

/s/ Sydney O'Hagan
Sydney O'Hagan, Esq.